JIJ SQOA Solver Quantum Function End User License Agreement

Provider: JIJ Inc. ("JIJ")
Function name: JIJ SQOA Solver

This End User License Agreement ("Agreement") governs your use of the JIJ SQOA Solver application function made available through the IBM Quantum Platform, together with its JIJ-provided documentation and updates (the "Function"). In this Agreement, "you" means the individual accepting it or the organization on whose behalf that individual accepts it. If you accept on behalf of an organization, you represent that you have authority to bind it. By enabling or using the Function, you agree to this Agreement.

1. Scope and access

This Agreement governs the Function supplied by JIJ. Your access to and use of the IBM Quantum Platform, quantum hardware, and other IBM services, and IBM's handling of data within those services, are governed by the applicable terms between you and IBM. This Agreement does not change those terms or limit JIJ's obligations for data that JIJ accesses or receives. This Agreement does not set prices or payment terms for IBM platform access or Function usage. You may use the Function only while IBM makes it available to you and you have the necessary IBM access rights.

2. Right to use the Function

Subject to this Agreement, JIJ grants you a limited, non-exclusive, non-transferable, non-sublicensable right to access and use the Function through the IBM Quantum Platform for your lawful business, research, or educational purposes. No source code or ownership interest in the Function is transferred to you. You may use the results returned by the Function as provided in Section 5.

You are responsible for ensuring that you have the rights and permissions necessary to submit your inputs and to use the Function for your intended purpose. You must comply with applicable law and the IBM terms governing your platform access.

3. Restrictions

You must not, and must not authorize others to: (a) reverse engineer, decompile, or attempt to extract the source code or non-public algorithms of the Function, except to the extent such a restriction is prohibited by applicable law; (b) copy, modify, sublicense, sell, distribute, or make the Function itself available to a third party outside the access granted through IBM; (c) bypass technical access controls or usage limits; (d) interfere with the security or operation of the Function or the IBM Quantum Platform; or (e) use the Function in violation of law or the rights of others. These restrictions apply to the Function, not to your independently owned inputs or the results returned to you.

4. Customer data and processing

"Customer Input" means the problem data and execution parameters that you submit to the Function. "Output" means the results and associated metadata returned by the Function in response to Customer Input, excluding the Function and JIJ's software, algorithms, and documentation. As between you and JIJ, you retain all rights in Customer Input. You grant JIJ only the limited rights to access, process, reproduce, and transmit Customer Input to the extent reasonably necessary to provide the Function, perform the requested computation, return Output to you, and address a specific support request or security or reliability incident.

JIJ may access or receive Customer Input or Output for a specific support request or security or reliability incident only to the extent reasonably necessary for that purpose and permitted by applicable IBM arrangements.

JIJ may generate and use operational records such as job identifiers, backend names, problem-size counts, execution settings (which may include parameters you submitted), execution status and duration, error categories, and resource consumption, solely to operate, secure, support, and troubleshoot the Function. JIJ will not use Customer Input, Output, or operational records for model training, unrelated product development, marketing, or benchmarking.

5. Results and intellectual property

As between you and JIJ, JIJ does not claim ownership of your Output. You may use, retain, and share Output for any lawful purpose, subject to any rights of third parties in the material you submitted. No right to the underlying Function is granted by the delivery of Output.

JIJ and its licensors retain all rights in the Function, its algorithms, software, documentation, improvements, and related technology. Each party retains its pre-existing intellectual property. This Agreement does not restrict rights granted to you under any applicable open-source license.

6. Data security

JIJ will use reasonable technical and organizational measures to protect Customer Input, Output, and operational records that it accesses or receives in providing and supporting the Function.

7. Function characteristics and warranties

The Function uses experimental quantum and classical computation. Its results may be approximate or vary between runs. JIJ makes no warranty or guarantee concerning the accuracy, precision, correctness, completeness, feasibility, optimality, or consistency of any Output, or that the Function will produce a result for any particular input. JIJ also does not guarantee uninterrupted or error-free access. You are responsible for independently checking the suitability and correctness of results before relying on them, especially for consequential decisions.

To the extent permitted by applicable law, the Function is provided "as is" and JIJ disclaims implied warranties, including merchantability, fitness for a particular purpose, and non-infringement. This section does not limit any warranty that cannot lawfully be excluded.

8. Liability

To the extent permitted by applicable law, JIJ is not liable for indirect, incidental, special, consequential, or punitive damages, or for lost profits or business opportunities, arising from or relating to the Function. JIJ's total aggregate liability arising from or relating to this Agreement or the Function, whether in contract, tort, or otherwise, will not exceed USD 5,000. These limits apply to claims concerning unauthorized access to, use of, or disclosure of Customer Input or Output. They do not apply to liability that cannot lawfully be limited, or to JIJ's fraud, intentional misconduct, or gross negligence.

9. Suspension and end of use

JIJ may suspend or terminate your right to use the Function if you materially breach this Agreement or if reasonably necessary to address a security threat or legal requirement. Where reasonably practicable, JIJ will give notice. Your right to use the Function also ends if IBM withdraws your access or the Function is no longer made available to you.

10. Governing law

This Agreement is governed by the laws of Japan, excluding conflict-of-laws rules. The Tokyo District Court has exclusive jurisdiction over disputes arising from this Agreement, to the extent permitted by law.